

Complaint Report (CCRB)

CCRB Case No :	201108018	C/V Report Date :	Sat, 06/11/2011
Complaint Type :	CCRB	Investigator :	Jonathan Hutchinson
Complaint Made At :	IAB	Ref. No	11-27576
Received Date (CCRB) :	Tue, 06/21/2011 12:47 PM	Mode :	Phone
Incident Date(s) :	Sat, 06/11/2011 1:21 PM		
Place of Occurrence:	[REDACTED]	Precinct:	120
Location :	Police building	Boro:	Staten Island
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	Arrest - other violation/crime		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Lacerations with Stitches	The victim sustained a laceration to his forehead and will require 19 stitches and 2 staples.	

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Christophe Eng	Subject Officer	[REDACTED]	Asian	120	Hit against inanimate object - (other) - (F) Complainant Uncooperative
POM	Christophe Eng	Subject Officer	[REDACTED]	Asian	120	Physical force - (punched/kicked/kneed) - (F) Complainant Uncooperative
POM	Daniel Pantaleo	Subject Officer	[REDACTED]	White	120	Hit against inanimate object - (other) - (F) Complainant Uncooperative
POM	Daniel Pantaleo	Subject Officer	[REDACTED]	White	120	Physical force - (punched/kicked/kneed) - (F) Complainant Uncooperative

Initial Complaint Narrative

On 06/11/11 @ 1414 Hours, Ext Pride CALL-OUT#11-1633// Sergeant Gardell from the 120th Precinct called the command center to report the following: [REDACTED] DOB [REDACTED] pulled up to the Precinct appearing intoxicated. [REDACTED] approached Officers and began to argue with them. [REDACTED] tried to fight Officers and was placed under arrest by PO Eng Tax # [REDACTED]. Once inside the Cell [REDACTED] did become irate and EMS was called to the Precinct to remove him to hospital. Upon arrival of EMS [REDACTED] was escorted out of cells by PO ENG and PO Pantaleo Tax # [REDACTED] and hit his head on the cells causing a laceration to his forehead. [REDACTED] was removed by EMS to [REDACTED] for diagnosis. Duty Captain Washington was notified by 120 Pct Desk. Investigating Officer spoke to IAB Captain Sheehan of incident. Awaiting Diagnosis of Deft and DR name. @ 1559hrs, Sergeant Ceparamo 120th Precinct, called the command center with the following update: The sergeant states that [REDACTED] will require 19 stitches and 2 staples for his injuries. UPDATE 06/11/11 @ 1943 hours, Sergeant Boord, SI Investigation called the command center to advise they interviewed [REDACTED] and he stated he did not tell the IAB investigators the questioned him, Group# 53, he had been assaulted by the officers. [REDACTED] is recanted part of his story and is now saying, he was slammed against the cell and kicked and punched while outside the precinct. [REDACTED] states when he fell he is not sure if it was because he slipped or because he was pushed. UPDATE 06/11/11 @ 2350 hrs Ext 2248, Sergeant Michael (Group 53) states during the first interview with defendant [REDACTED] he stated, he was intoxicated and mouthing off and made no allegations of misconduct. Once Staten Island investigations interviewed the defendant he made the allegation that he was pushed into the cell door then kicked and punched. Sergeant Carmichael responded back to the hospital to interview [REDACTED] and during the second interview, [REDACTED] then stated he was pushed, kicked and punched. Defendant [REDACTED] was being held at the 120th Precinct cells and witnessed the incident, he was interviewed and stated the [REDACTED] was cursing at the cops and punched a police officer in his face. After conferral with IAB Duty Captain Winslow, recommends a "C" case to Group 54.

Witness
